

Juvenile justice

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My experiences

- Rape case (involved of 13 yrs school boy) Nawalparasi DC
- Rape case (involved of 12 yrs boy) Lalitpur DC
- Rape and murder case(very brutal, involved of 16 yrs boys) Lalitpur District Court

Philosophy of juvenile justice

- Reform
- Child – centric approach
- Focus on social reintegration
- Protection of dignity and right of the child

Core principles of juvenile justice

- Best interest of the child
- Presumption of innocence
- Privacy and confidentiality
- Principle of participation
- Family responsibility
- Restoration
- Diversion
- Restorative justice
- Principle of non- stigmatizing,language,decision and action

Child friendly court procedure

- Informal atmosphere
- Simple language
- In-camera proceeding
- Presence of parent and guardian
- Avoid intimidating practice

International framework

- UN convention on the Rights of the Child
- Beijing Rules (how children in conflict with the law should be treated)
- Riyadh guidelines (preventing and responding to juvenile delinquency)
- Havana Rules (how children (under 18) should be treated when they are detain or imprisoned)

Age determination

- Birth certificate given by hospital
- Birth registration
- Character certificate or date of school admission
- Age certified by hospital
- Janmakundali, china, tipot or age mentation by parents or family member

Role of the judges

- Guardian of child right
- Ensure due process
- Prevent secondary victimization
- Apply judicial discretion
- Individualized assessment
- Co – ordination with social service

